

1. LAW AND THE STATE

INTRODUCTION TO THE LEGAL SYSTEM – MODULE I

A.y. 2024/2025

Prof. Pietro Sirena



Un. 1

Sirena, *Introduction to Private Law*, 3rd edition

1. DEFINITION OF LAW

2. COMPARATIVE LAW

3. PRIVATE INTERNATIONAL LAW

4. UNIFORM LAW



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DEFINITION OF LAW

Both Romance (or Neo-Latin) and West German languages have incorporated the word ***directum***, which in the common parlance of the Middle Ages meant “straight” in the sense of “just, equal”



French: *droit*

Italian: *diritto*

Spanish: *derecho*

German: *Recht*

English: *right*

DEFINITION OF LAW



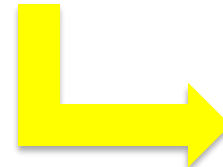
Ius was the Latin for law and its etymology is obscure:



*just, justice,
jurisprudence,
jurist,
jurisdiction,
juridical*

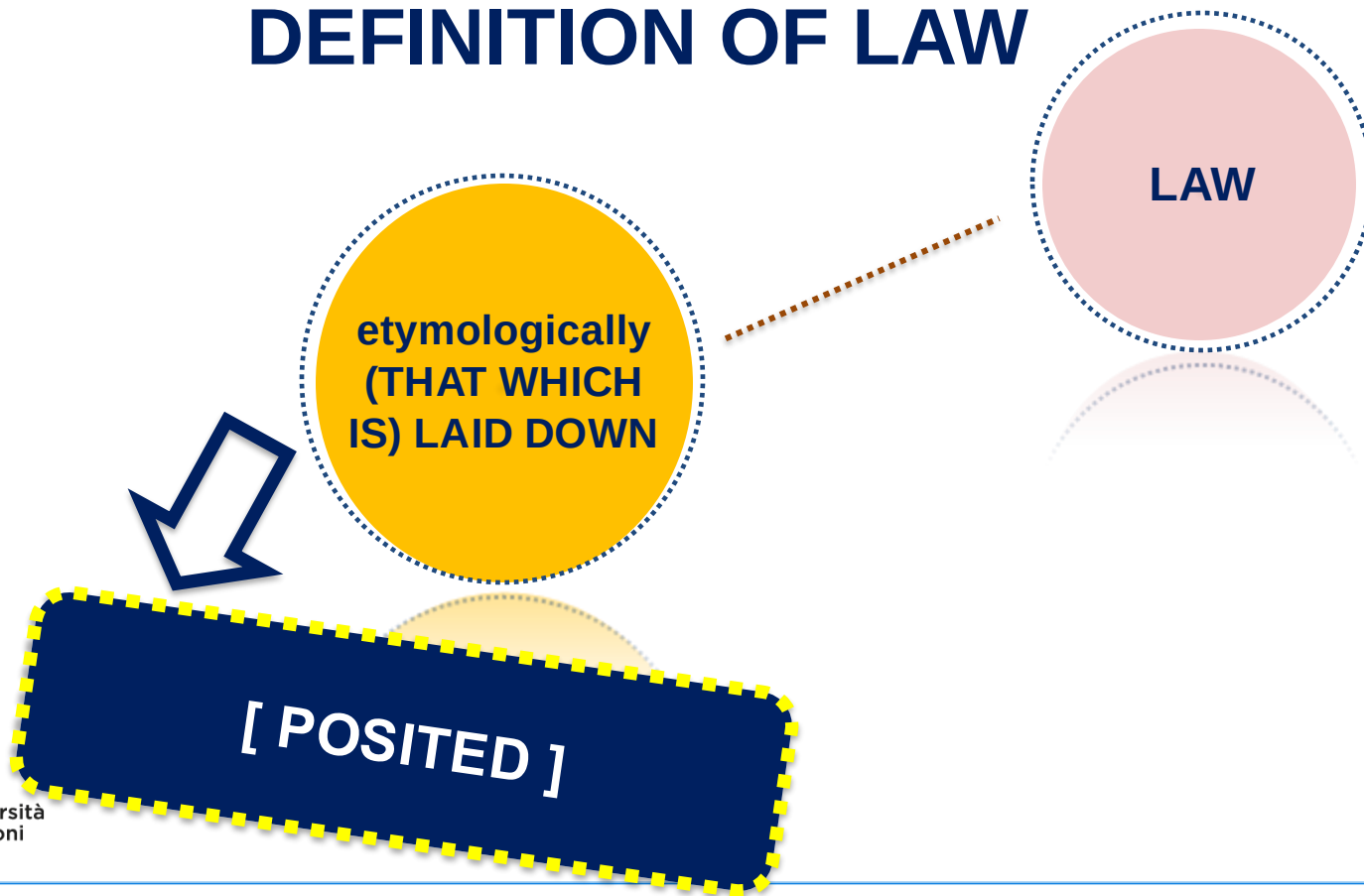


Ius quia iussum (what
has been commanded)?



Ius quia iustum (what is
just)?

DEFINITION OF LAW



TWO (OPPOSITE?) VIEWS OF LAW

The answers given to the question “What is Law?” during the course of history may be gathered into two main groups

Legal naturalism and the ancient sense of law (*ius quia iustum*)

By “legal naturalism” it is meant that this view of law was hinged on the ancient sense of nature as a rational order, where all men, animals and things were to accomplish their own, inner reason of being (*naturalis ordo*), whether or not a divine footprint was recognized in it. Law was justice and justice was the rational truth of nature, where all beings and things were deemed to accomplish what they were designed to do

Legal positivism and the modern sense of law (*ius quia iussum*)

During the 19th century, legal positivism has gradually overcome legal naturalism, thus becoming the common ground of any discourse about law and embodying the current mentality of jurists. In the positivist view, the “source” of a law is the establishment of that law by some socially recognized legal authority. The most famous conceptualization of legal positivism is to be ascribed to Hans Kelsen



STATISM AND NATIONALISM

Sirena, *Introduction*,
ch. 3, para 1

Beginning 18th century

National states

Private law

political decision of a sovereign entity:

- **absolute monarch**
- **democratic parliament**

WESTPHALIAN PARADIGM



Sirena, *Introduction*,
ch. 3, para 2

DOMESTIC LAW

- The State's sovereignty entitles it to bind its own citizens by enacting legal rules
- The way to legal nationalism was thus opened and led to the major codifications of private law of the 19th century

INTERNATIONAL LAW

- The State's sovereignty can be voluntarily self-limited by means of agreements with other States
- Each contracting State has a duty to give execution to the international agreements it has entered into

COMPARATIVE LAW

Since each State creates its own law, any discourse about law is possible only with regard to a national law, which depends upon the acts enacted by each State (exception: international law)



A branch of legal science specifically investigates the comparison between a national law and another, which is referred to as **comparative law**

THE CONCEPT

COMPARATIVE LAW

*Droit comparé;
Rechtsvergleichung;
Diritto comparato*



FOREIGN LAW

Discipline: comparison among legal systems: similarities and differences?

Result of an intellectual and cultural operation of comparison between a national legal system and another

Proper legal system in force in a state other than that being used as the reference



Aims and methods

Sirena, *Introduction*,
ch. 3, para 3, 3.1

3

Primary task of comparative law
gain knowledge on a specific
subject matter



1

Aid to legislature

2

a tool of construction
of national or
international law

3

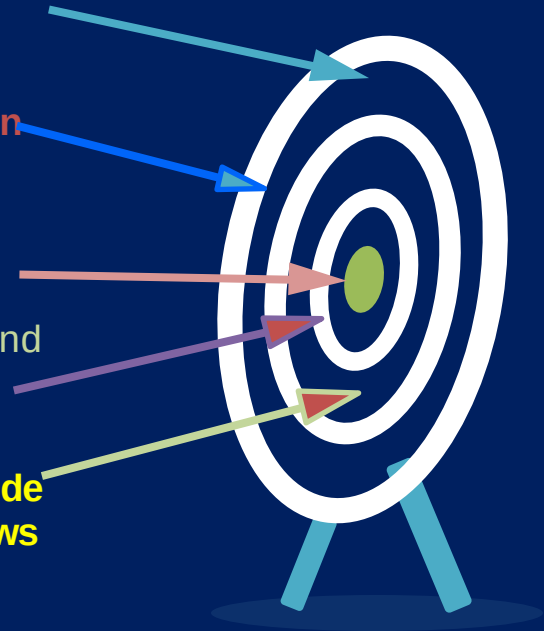
a subject to be taught and
studied at universities

4

an incentive and a guide
to uniform existing laws

5

a driver of European law as such



Comparative law

Sirena, *Introduction*,
ch. 3, para 3.1

*Congrès international
de droit comparé*
31 July to 4 August
1900



*historical birth of
comparative law*

E. Rabel
(1874-1955)

One of the **main fathers** of comparative law

Defined the scope and the methods of this field
of knowledge and laid the foundations for its
further development in Europe



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Methods of Comparative Law

R. Zimmermann

K. Zweigert
H. Kötz

Historical-comparatist approach

The *tertium comparationis* should be found within the shared Roman legacy of the legal systems being compared

Functionalist approach

The *tertium comparationis* should be defined based on the function that resolves practical issues, regardless of the conceptual or dogmatic framework of these solutions

Micro-comparison



METHODS OF COMPARATIVE LAW

R. Sacco

Theory of dissociation of legal formants

There is the possibility of a lack of alignment among the three elements comprising the legal framework:

legislature

judiciary

scholars'
opinion

A legislative text may not align with the practical rule enforced by the legal system's judicial decisions, or that a scholar might provide an incorrect or distorted portrayal of their own country's legal system.



**METHODS OF
COMPARATIVE
LAW**

Micro-comparison

A method of comparing legal systems that relies on the operational solutions they offer for addressing and resolving specific real-world problems within the realm of law

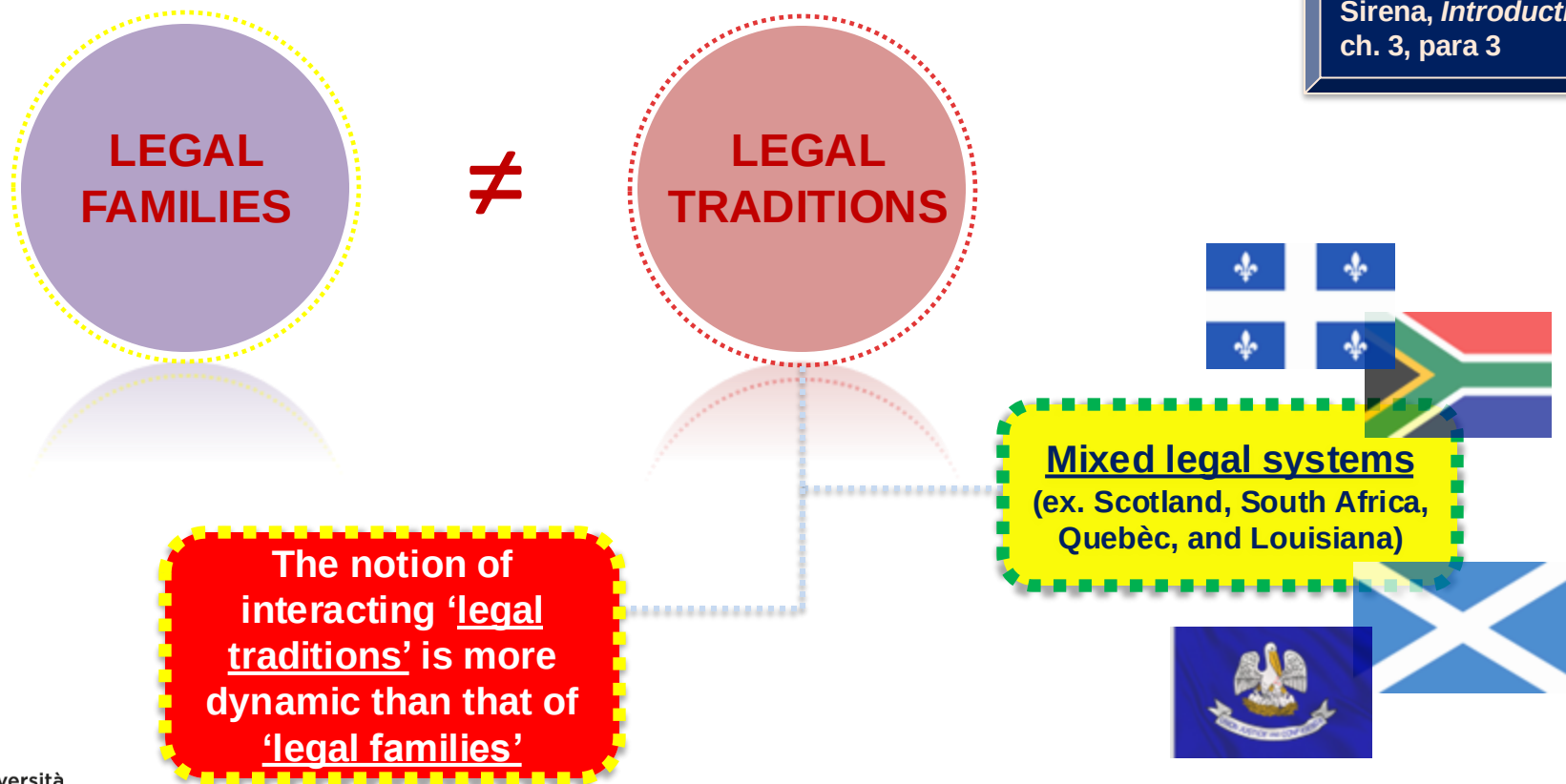
Macro-comparison

A method of comparing national laws by considering the varying constitutional and institutional characteristics, as well as the legal mindset of the jurists associated with each system

Families

groups of national laws that are connected by a number of characterizing features





Families of Legal Systems

Sirena, *Introduction*,
ch. 3, para 3

- René David gathers national laws of the world into “families”, which share similar concepts and historical roots
- Within the Western legal tradition, the most important families of national laws are two: that of civil law and that of common law



PRIVATE INTERNATIONAL LAW

Sirena,
Introduction, cap.
3, para 4.

Example:

A contract is concluded in Italy between a French party and a German party. The question arises whether applicable to the contract will be the Italian law, or the French, or the German

Such collisions of laws are addressed by a branch of each legal system, which is called **international private law**



- As regards States which are Members of the European union, their international private law has been unified through regulations of the European union



UNIFORM LAW



**Convergence among legal
systems**



Legal transplant

**Conventions to uniform laws
(e.g. Unidroit, Uncitral)**

Legal transplants

*[Grefe juridique;
Rechtsübertragung;
Trapianto giuridico]*

A legislative mechanism through which a law from one country is applied, with relatively few modifications, in another country, aiming to minimize disparities between legal systems and promote their alignment ...
but...

Rigidity or deeply ingrained presumptions within the legal scholarship and the case law of the receiving country can actually lead to a rejection crisis in that country, ultimately thwarting their intended purpose and turning into significant legal challenges (see Sacco)

Rules
(not only
statutory
rules)

Legal
concepts

Institutions



Uniform Law and Uniform Legislation

Uniform
law

Interpretation and application of uniform legislation
(carried out by national judiciatures which may use their own –
domestic - criteria)

Uniform
legislation

Uniform legislation that is adopted



UNIFORM LAW

Sirena, *Introduction*,
ch. 3, para 5



the goal of uniformity of law can be
achieved solely if uniform legislation
is interpreted on the basis of a
comparative analysis of the legal
systems involved

Rabel



INTERNATIONAL CONVENTIONS AND MODEL RULES

Sirena,
Introduction, ch. 3,
para 5

16

«The content and wording of both instruments are often drawn up by international agencies or scientific societies that conduct preliminary studies of comparative law»

Uniform
Commercial
Code (1952) – by
American Law
Institute (ALI)

United Nations
Commission on
International Trade
Law, established in
1966 by the United
Nations Organization

CISG

UN Convention
on International
Sale of Goods
(CISG – Vienna
Convention 1980)

UCC

**UNID
ROIT**

Institut international pour
l'unification du droit privé
(UNIDROIT), established
in 1926 by the League of
Nations

Example: Principles of
International Commercial
Contracts

**UNCIT
RAL**

European Law Institute (was
established (2011) and entrusted
with the quest for better law-
making in Europe, the
enhancement of European legal
integration, and the building up
of a European legal culture

ELI



RECAP

Uniform law is established when numerous states aim to adopt identical regulations within their respective legal systems (but see previous slides)

The *United Nations Convention on the International Sale of Goods (CISG)* is automatically applicable to the majority of international contracts for the sale of goods between businesses, unless the parties involved explicitly exclude its application (Article 6 of the CISG).

In the United States, the effort to establish a standardized set of commercial law led to the adoption of the Uniform Commercial Code (UCC).

UNIFORM LAW

INSTRUMENTS (OR SOURCES) OF UNIFORM LAW

International
conventions

Model laws

*INSTITUT INTERNATIONAL
POUR L'UNIFICATION DU
DROIT PRIVÉ (UNIDROIT)
and United
Nations Commission on
International Trade Law
(UNCITRAL)*



2. CIVIL LAW AND COMMON LAW JURISDICTION

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Un. 2

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1. ROMAN LAW
2. IUS CIVILE
3. CIVIL LAW
4. COMMON LAW



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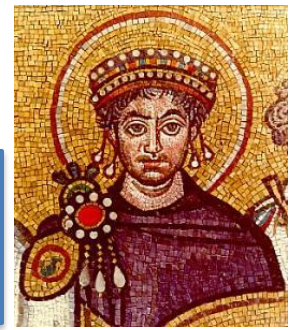


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CORPUS IURIS CIVILIS

Ch 2 para 2

The ***Corpus Iuris Civilis*** (“Body of Civil Law”) is a collection of fundamental works in jurisprudence, compiled from 529 to 534 by order of Justinian I, Eastern Roman Emperor

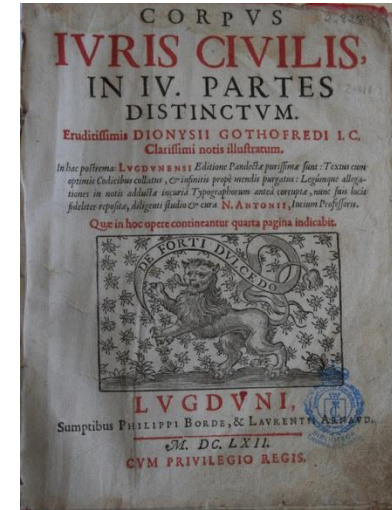


Code (Codex)

Digest or Pandects (Digesta, Pandectae)

Institutes (Institutiones)

New Laws (Novellae Constitutiones)



IUS CIVILE

The beginning of that tradition may be traced back to the renaissance of Roman law between the end of the **11th** and the **beginning of the 12th century**

In Bologna **Irnerius** rediscovered the **Justinian compilation**, made up in the 6th century, on the orders of Justinian, emperor of the Eastern Roman empire



- Irnerius began to read, to comment on and to teach the Justinian compilation
- The **first university** of the (Western) world was thus established (the *alma mater studiorum*, the university of Bologna)
- The study of Roman law, and particularly on the ***Pandectae* or *Digesta***, spread throughout Europe

CIVIL LAW

- The basic characteristic of such jurisdictions is that they have fully implemented the **doctrine of separation of powers**

Legislature ↔ Executive ↔ Judiciary



Baron de Montesquieu (1689-1755): «*only the mouth that pronounces the words of the law, inanimate beings that are not able to modify either its force or its rigour*»

- The core of private law is gathered and systematically organized into a civil code
 - ➔ *Code civil* (1804)
 - ➔ *Bürgerliches Gesetzbuch* (1900)
 - ➔ *Codice civile* (1865, 1942)

1066

After the battle of Hastings (1066), rise of a “common law”

1642

The political and juridical unity achieved by England already in the 11th century prevented the *ius commune* of continental Europe from expanding on the island: civil war (1642-1651)

COMMON LAW

1688

Glorious Revolution (1688-1689)

1789ff

The tenets of the French revolution could not gain ground in England, essentially because the democratisation of politics had already been achieved

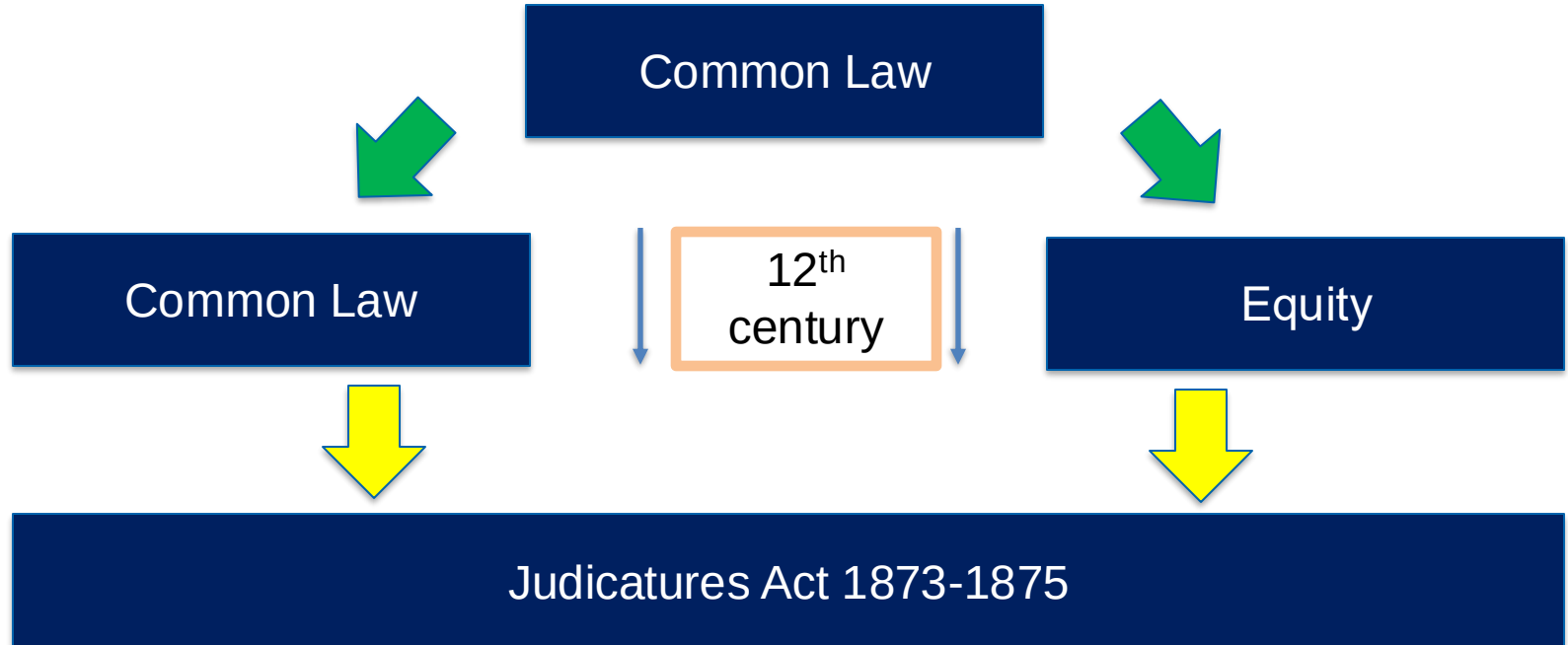
- Common law is not based upon acts approved by the Parliament, particularly it is not codified
- Common law develops through a case approach by courts
- Rule of “stare decisis”, pursuant to which precedents are binding for courts

In contrast to the continental *ius commune*, the English common law did not rely on a fundamental text to be dissected by scholars and taught at universities; instead, it evolved organically through the operation of a royal judicial system over time

COMMON LAW



Sirena, *Introduction*,
chapter 4, para 4.



MIXED JURISDICTIONS

